

MgucaTECH Solutions

WhatsApp Chatbot Subscription Agreement

SCHEDULE TO THE AGREEMENT

GENERAL DETAILS	
1.1 The Service Provider (Company)	MgucaTECH Solutions (Pty) Ltd, herein represented by Bakhokhele Mguca (Director)
Registration / Identity Number	2025/320002/07
VAT Registration Number	Not yet registered
1.2 The Client (full name / company)	
Registration / Identity Number	
WhatsApp Number(s) to be activated	
SUBSCRIPTION COSTS	
1.3 Monthly Subscription Fee	R199.00 (One Hundred and Ninety-Nine Rand)
1.4 Setup / Onboarding Fee (once-off)	Nil (included in monthly subscription)
1.5 Monthly Administration Fee	Included in subscription fee
1.6 Annual Escalation	CPI-linked or as agreed in writing
SERVICE DETAILS	
1.7 WhatsApp Bot Name / Display Name	
1.8 Number of Active Chatbot Flows	
1.9 Messaging Volume Cap (per month)	As per selected tier
1.10 Support Channel	Email / WhatsApp
1.11 Support Response Time (Business Hours)	Within 24 hours
AGREEMENT PERIOD	
1.12 Agreement Start Date	
1.13 Initial Agreement Period	12 (Twelve) months
1.14 Agreement End Date	
1.15 Auto-Renewal	Month-to-month after initial period unless canceled in writing
1.16 Minimum Cancellation Notice	30 (Thirty) calendar days written notice
PAYMENT DETAILS	
1.17 Payment Due Date	1st of each month
1.18 Payment Method	EFT / Debit Order
1.19 Banking Details — Account Holder	MgucaTECH Solutions
Bank	ABSA
Branch Code	632005
Account Number	[YOUR ABSA ACCOUNT NUMBER]
Payment Reference	Client Name / Reference
SPECIAL CONDITIONS	

THE AGREEMENT

DEFINITIONS AND INTERPRETATION

1. In this Agreement, the words below mean the following:
 - 1.1 "Business Day" means any day of the week, excluding Saturdays, Sundays, and South African public holidays.
 - 1.2 "Service Provider" means the company specified in 1.1 of the Schedule.
 - 1.3 "Client" means the person or entity specified in 1.2 of the Schedule.
 - 1.4 "Services" means the WhatsApp chatbot subscription services, including bot hosting, flow management, message processing, and related support as described in this Agreement and the Schedule.
 - 1.5 "WhatsApp Business Platform" means the Meta-owned messaging infrastructure through which the Services are delivered.
 - 1.6 "Subscription Fee" means the monthly fee specified in 1.3 of the Schedule.
 - 1.7 "Intellectual Property" means all software, chatbot flows, templates, configurations, scripts, and systems created or owned by the Service Provider.
 - 1.8 "Content" means all text, media, data, and information supplied by the Client for use in the chatbot.
 - 1.9 "Confidential Information" means any non-public information disclosed by either Party in connection with this Agreement.
 - 1.10 "Downtime" means any period during which the Service is unavailable due to causes within the Service Provider's direct control.
 - 1.11 "Fair Use" means usage of the Services within the messaging volume and flow limits specified in 1.8 and 1.9 of the Schedule.
 - 1.12 "POPIA" means the Protection of Personal Information Act (No 4 of 2013).
 - 1.13 "CPA" means the Consumer Protection Act (No 68 of 2008).
2. Any reference to one gender includes all genders. The singular includes the plural and vice versa.
3. No provision of this Agreement shall be interpreted to contravene applicable South African legislation. In the event of any conflict between this Agreement and such legislation, the relevant legislation prevails.

THE SUBSCRIPTION SERVICE

4. The Service Provider agrees to provide the Client with access to a WhatsApp chatbot platform on a subscription basis for the duration specified in 1.12 and 1.13 of the Schedule.
5. The Services include the hosting, operation, and maintenance of the chatbot flow(s) as agreed between the Parties. Any customization, new flows, or integration outside the original scope will be quoted and invoiced separately.
6. The Service Provider shall use commercially reasonable efforts to ensure the availability of the Services during South African business hours. Scheduled maintenance will be communicated to the Client with at least 24 (twenty-four) hours' notice where possible.
7. The Services are delivered via the WhatsApp Business Platform operated by Meta Platforms, Inc. The Service Provider does not guarantee uninterrupted service where disruptions are caused by Meta, third-party API providers, internet connectivity issues, or force majeure events.
8. The Service Provider reserves the right to update, modify, or enhance the platform from time to time, provided that such changes do not materially diminish the core functionality available to the Client.

SUBSCRIPTION FEE AND PAYMENT

9. The Client agrees to pay the Subscription Fee as specified in 1.3 of the Schedule, monthly in advance, by no later than the first day of each calendar month.
10. Payment shall be made via the method specified in 1.18 of the Schedule, using the banking details in 1.19 of the Schedule. The Client's reference as specified in 1.19 must appear on all payments.
11. Any once-off setup or on-boarding fee specified in 1.4 of the Schedule is payable prior to activation of the Service and is non-refundable once the on-boarding process has commenced.
12. Payments not received by the due date will accrue interest at the prime overdraft rate as published by ABSA Bank, plus 2%, calculated from the first day of the month in which payment was due to the date of receipt.
13. The Service Provider reserves the right to suspend the Client's access to the Services if payment is more than 7 (seven) Business Days overdue, without prejudice to any other rights the Service Provider may have. Services will be reinstated within 2 (two) Business Days of receipt of the outstanding amount.

14. The Subscription Fee shall escalate annually in accordance with 1.6 of the Schedule. The Service Provider will provide the Client with at least 30 (thirty) days' written notice of any price increase.
15. All fees quoted are inclusive of VAT (if applicable) unless expressly stated otherwise.

FAIR USE AND MESSAGING LIMITS

16. The Client's subscription entitles them to the messaging volume and number of active chatbot flows specified in 1.8 and 1.9 of the Schedule. Usage in excess of these limits may result in additional charges as agreed in writing between the Parties.
17. The Client agrees not to use the Services for the purpose of sending unsolicited bulk messages, spam, or any communication that violates WhatsApp's Terms of Service, Meta's Business Policy, or applicable South African law.
18. The Service Provider reserves the right to throttle or suspend the Client's account if usage is found to be in violation of WhatsApp's or Meta's policies, without liability to the Client.

CLIENT RESPONSIBILITIES

19. The Client shall:
 - 19.1 Provide accurate, complete, and lawful Content for use in the chatbot and promptly update such Content when necessary;
 - 19.2 Ensure that all communications sent via the chatbot comply with applicable South African legislation, including but not limited to POPIA, the Electronic Communications and Transactions Act (No 25 of 2002), and CPA;
 - 19.3 Obtain all necessary consents from their own customers and end-users prior to initiating WhatsApp communications through the platform;
 - 19.4 Keep their account credentials confidential and notify the Service Provider immediately of any unauthorised access;
 - 19.5 Ensure that the WhatsApp Business number(s) listed in 1.2 of the Schedule are registered in the Client's name and that the Client has full authority to use them; and
 - 19.6 Cooperate reasonably with the Service Provider during onboarding, troubleshooting, and maintenance activities.
20. The Client accepts full responsibility for the Content distributed through the chatbot and indemnifies the Service Provider against any claims, losses, or liabilities arising from unlawful or inappropriate Content.

INTELLECTUAL PROPERTY

21. All Intellectual Property created, developed, or owned by the Service Provider — including platform software, chatbot engine, templates, and flows — remains the exclusive property of the Service Provider. This Agreement grants the Client a non-exclusive, non-transferable licence to use the Services for the duration of this Agreement only.
22. Any Content provided by the Client remains the property of the Client. The Client grants the Service Provider a limited licence to use such Content solely for the purpose of providing the Services.
23. Upon termination or expiry of this Agreement, the Client's licence to use the Services immediately ceases. The Service Provider is under no obligation to export or deliver any chatbot flows or configurations to the Client, unless agreed in writing.
24. The Client may not reverse-engineer, copy, reproduce, resell, or sublicense the Service Provider's platform or technology without prior written consent.

DATA PROTECTION AND POPIA

25. Both Parties acknowledge and agree to comply with POPIA and any other applicable data protection legislation in relation to personal information processed in connection with this Agreement.
26. The Service Provider will process end-user data only to the extent necessary to deliver the Services and will implement reasonable technical and organisational measures to protect such data.
27. The Client, as the responsible party in respect of their customers' personal information, warrants that they have obtained all necessary consents required to lawfully process and share such personal information with the Service Provider for purposes of the Services.
28. The terms of this section shall survive the termination, cancellation, or expiry of this Agreement.

CONFIDENTIALITY

29. Each Party agrees to keep the other's Confidential Information strictly confidential and not to disclose it to any third party without prior written consent, except as required by law or court order.

30. This obligation of confidentiality shall survive termination of this Agreement for a period of 2 (two) years.

SERVICE LEVELS AND SUPPORT

- 31. The Service Provider shall use commercially reasonable efforts to maintain a platform uptime of at least 95% per calendar month, excluding scheduled maintenance and downtime caused by third-party services.
- 32. Support queries must be submitted via the channel specified in 1.10 of the Schedule. The Service Provider will endeavour to respond within the time-frame specified in 1.11 of the Schedule during Business Days.
- 33. The Service Provider does not guarantee specific response times for issues caused by Meta's WhatsApp Business API infrastructure, network outages, or force majeure events.

AGREEMENT PERIOD AND RENEWAL

- 34. This Agreement commences on the start date specified in 1.12 of the Schedule and continues for the initial period specified in 1.13 of the Schedule.
- 35. After the initial period, this Agreement will automatically continue on a month-to-month basis as specified in 1.15 of the Schedule, unless either Party gives written notice of cancellation in accordance with clause 36.
- 36. Either Party may terminate this Agreement after the initial period by giving the other Party written notice as specified in 1.16 of the Schedule. Termination shall take effect at the end of the calendar month following the notice period.

EARLY CANCELLATION

- 37. Should the Client cancel this Agreement before the end of the initial period specified in 1.13 of the Schedule, the following will apply:
 - 37.1 The Client must give at least 20 (twenty) Business Days' written notice of cancellation;
 - 37.2 The Client will be liable for a cancellation fee equivalent to the remaining monthly Subscription Fees for the unexpired portion of the initial term, subject to a maximum of 2 (two) months' Subscription Fee; and
 - 37.3 All once-off fees already invoiced remain payable and are non-refundable.
- 38. The Service Provider may terminate this Agreement immediately in the event of a material breach by the Client that is not remedied within 10 (ten) Business Days of written notice.

LIABILITY AND INDEMNITY

- 39. The Service Provider's aggregate liability to the Client for any claim arising out of or in connection with this Agreement shall not exceed the total Subscription Fees paid by the Client in the 3 (three) months preceding the event giving rise to the claim.
- 40. The Service Provider shall not be liable for any indirect, special, consequential, or punitive damages, including but not limited to loss of business, loss of revenue, or loss of data.
- 41. The Service Provider is not liable for any disruptions, suspensions, or changes to the WhatsApp Business Platform caused by Meta Platforms, Inc., including changes to Meta's API, pricing, or policies.
- 42. The Client indemnifies the Service Provider against any claim, loss, damage, or liability arising from the Client's use of the Services in contravention of this Agreement, applicable law, or WhatsApp's Terms of Service.

SUSPENSION AND TERMINATION

- 43. The Service Provider may suspend the Services immediately and without notice if:
 - 43.1 The Client's WhatsApp Business account is suspended or banned by Meta;
 - 43.2 The Client is using the Services for unlawful purposes; or
 - 43.3 Continuing to provide the Services would expose the Service Provider to legal liability.
- 44. On termination of this Agreement for any reason, the Client's access to the platform will be deactivated within 2 (two) Business Days. The Service Provider will retain Client data for a period of 30 (thirty) days after termination, after which it may be permanently deleted.

NOTICES AND COMMUNICATIONS

- 45. All notices under this Agreement must be delivered in writing via email, WhatsApp, or registered post to the contact details on record.

46. Notices sent by email or WhatsApp will be deemed received on the date of successful delivery, provided no bounce or failure notification is received within 24 hours.

GENERAL PROVISIONS

47. This Agreement constitutes the entire agreement between the Parties and supersedes all prior representations, negotiations, or agreements relating to the Services.
48. No variation, amendment, or cancellation of this Agreement will be valid unless in writing and signed by both Parties.
49. If any provision of this Agreement is found to be unenforceable, the remaining provisions will continue in full force and effect.
50. This Agreement shall be governed by the laws of the Republic of South Africa. The Parties consent to the jurisdiction of the Magistrate's Court or High Court, as applicable.
51. Neither Party may cede or assign its rights or obligations under this Agreement without the prior written consent of the other Party.
52. The Client confirms they have read, understood, and freely accepted the terms of this Agreement.

SPECIAL CONDITIONS

53. All contracting Parties agree to be bound by the additional provisions specified in 1.20 of the Schedule.

SIGNATURES

By signing below, both Parties confirm that they have read, understood, and agree to be bound by this Agreement.

SERVICE PROVIDER

MgucaTECH Solutions (Pty) Ltd | Reg: 2025/320002/07 | Tax: 9445944227
Director: Bakhokhele Mguca | Tel: 076 047 0141 | Email: b.mguca09@gmail.com

Signature: _____

Place: _____

Date: _____

Witness: _____

CLIENT

Signature: _____

Place: _____

Date: _____

Witness: _____

Initial _____